

INTEGRITY ON TRIAL: A CASE STUDY IN LAW ENFORCEMENT ACCOUNTABILITY

THE PROBLEM: SYSTEMIC MISCONDUCT & ACCOUNTABILITY GAPS



THE ANATOMY OF MISCONDUCT: FIVE CORE ALLEGATIONS

DISTORTED EVIDENCE & SWORN STATEMENTS

Allegation of material distortion in affidavits (e.g., characterizing fear-based flight as organized search).

70%

FAILURE TO TEST PHYSICAL PLAUSIBILITY

Lunar Illumination (70% at time) and NOAA Weather Records (43 F/93% humidity) ignored against conflicting narrative.



UNDISCLOSED CONFLICT OF INTEREST

Major Freeman allegedly failed to disclose familial relationship: brother-in-law of a witness who was cousin of the accuser.



INVESTIGATIVE TUNNEL VISION

Exclusive focus on one suspect; failure to interview identified bar staff or patrons.



RIGHTS & EVIDENCE FAILURES

Incomplete DNA consent forms, lack of response to counsel, unsealed/unphotographed clothing collection.

THE ACCOUNTABILITY GAP: POLICIES VS. REALITY

CALEA ACCREDITATION DISCREPANCY



INTERNAL POLICIES



EXTERNAL ACCREDITATION

Agency internal policies cite national standards, but lacks external CALEA accreditation for independent verification.

UNVERIFIED CREDENTIALS & STANDARDS



UNVERIFIED PROFESSIONAL CREDENTIALS
Sworn testimony of "advanced certificates" unverified in ACADIS



GOOD MORAL CHARACTER STANDARD (13 NCAC 10B.0301)
NC Supreme Court defines as requiring absolute honesty and freedom from deceit.

COMMUNITY IMPACT:
EROSION OF PUBLIC TRUST

BETRAYAL OF THE COMMUNITY SHIELD:
Compromises constitutional protections when senior officer blurs custody or misrepresents probable cause.

THE HIGH COST OF SENIOR MISCONDUCT:
Errors by ranking officers influence supervisory judgment, agency culture, and integrity of certification.

DILUTION OF TRUTH-SEEKING FUNCTIONS:
Prioritizing "case-building" over "truth-seeking" undermines confidence that justice system protects the innocent.

THE SOLUTION: PROCEDURAL PATH TO SANCTIONS & OVERSIGHT

THE PATH TO SANCTIONS: DECERTIFICATION FRAMEWORK

1

TIER 1: MANDATORY PERMANENT REVOCATION

Required if Commission finds officer committed a felony, such as perjury (G.S. 14-209) (12 NCAC 10B.0204(a)).

2

TIER 2: FIVE-YEAR MINIMUM REVOCATION

Triggered by "knowing material misrepresentation" of required certification information or sworn evidence.

3

TIER 3: DISCRETIONARY SANCTIONS

Commission may suspend or revoke for unprofessional personal conduct or violations of IACP Code of Ethics.